

Social Science

STATE – community of persons, more or less numerous, permanently occupying a definite portion of territory independent of external control and possessing an organized government to which the great body of inhabitants render habitual obedience.

Elements of the State:

- **People** – the inhabitants of the state
- **Territory** – fixed portion of the surface of the earth inhabited by the people of the state.
- **Government** – agency or instrumentality through which the will of the state is formulated, expressed and realized.

National Government	The entire machinery of the government
Local Government	Political subdivisions such as provinces, cities, municipalities and barangays
Autonomous regions	Autonomous governments or regions in the country
Metropolitan Authority	Special political subdivisions composed of all local government units comprising Metro Manila

- **Sovereignty** – supreme power of the state to enforce its will upon the people and the freedom from external or foreign control.

Origin of the State

Divine Right Theory	Necessity or Force Theory
The state is of Divine creation and the ruler is ordained by God to govern the people. Reference has been made to the laws which Moses received at Mt. Sinai.	State must have been created through force, by some great warriors who imposed their will upon the weak.

Paternalistic Theory

Attributes the origin of the state to the enlargement of the family which remained under the authority of the mother or father.

Social Contract Theory

Asserts that the early states must have been formed by deliberate and voluntary compact among the people to form a society and organize government for their common good. This theory justifies the right of the people to revolt against a bad ruler.

FORMS OF GOVERNMENT

Monarchy

The supreme and final authority is in the hands of a single person without regard to the source of his election or the nature or duration of his tenure

1. **Absolute monarchy:** the ruler rules by divine right
2. **Limited monarchy:** the ruler rules in accordance with a constitution

Aristocracy

Political power is exercised by a few privileged class

Democracy

Political power is exercised by a majority of the people.

1. **Direct or pure democracy:** the will of the State is formulated or expressed directly and immediately through the people in a mass meeting or primary assembly rather than through the medium of delegates or representatives chosen to act for them
2. **Indirect, representative or republican democracy:** the will of the State is formulated and expressed through the agency of a relatively small and select body of persons chosen by the people to act as their representatives



FORMS OF GOVERNMENT	
De jure	General support of its people and is founded on existing constitutional laws of the state.
De facto	Founded not on existing constitutional laws of the state. De facto government by usurpation: gets possession and control of, or usurps by force, or by voice of the majority, the rightful government and maintains itself against the will of the latter. De facto government by insurrection: established as independent government by the inhabitants of a country who rise in insurrection against the parent state De facto government by invasion: established and maintained by military force which invades and occupies a territory of the enemy in the course of war, and which is dominated by a government of paramount force

CONSTITUTION – written instrument by which the fundamental powers of government are established, limited and defined, and by which the powers are distributed among several departments for their safe and useful exercise for the benefits of the body politics.

Types of Constitution:

- Written constitution** – provisions are all contained in a single document.
- Unwritten constitution** – provisions are not contained in a single document but rather in different documents which are considered as part of the fundamental law of the land.
- Conventional or enacted constitution** – formulated by a constitutional convention that is called to draft the constitution
- Cumulative or evolved constitution** – not drafted by a positive act of the state but it developed as a part of the history of the nation
- Rigid or inelastic constitution** – cannot be easily amended unless such amendment is provided for by the constitution itself
- Flexible or elastic constitution** – can be easily changed anytime

Parts of a Constitution:

- Constitution of Government** – refers to those provisions which set up the governmental structure specifically Articles VI, VII, VIII, IX and X of the 1987 Constitution
- Constitution of Liberty** – provisions which guarantee individual fundamental liberties against

governmental abuse specifically provided in Articles III, IV, V, XII, XIII, XIV and XV of the 1987 Constitution

- Constitution of Sovereignty** – refers to the provisions which outline the process whereby the sovereign people may change the constitution. Provided in articles XVII and II Section 1 of the 1987 Constitution.

Fundamental Principles of Government (The 1987 Constitution)

- Recognition of the aid of the Almighty God
- Sovereignty of the people
- Renunciation of war as an instrument of national policy.
- Supremacy of civilian authority over the military
- Separation of church and state
- Recognition of the importance of the family as a basic social institution and of the vital role of the youth in nation building
- Guarantee of Human Rights
- Government through Suffrage
- Separation of powers
- Independence of the Judiciary
- Guarantee of local autonomy
- High sense of public service morality and accountability of public officers
- Nationalization of natural resources and certain private enterprises affected with public interest
- Non-suitability of the State
- Rule of the majority
- Government of laws and not of men

CLASSIFICATION OF RIGHTS:

- Natural rights** – possessed by every citizen without being granted by the state for they are conferred by God to human being so that he may live a happy life.
- Constitutional rights** – conferred and protected by the Constitution. Since they are part of the fundamental law, they cannot be modified or taken away by the law-making body
 - Political rights** – give citizens the power to participate directly or indirectly, in the establishment or administration of the government
 - Civil rights** – rights which the law will enforce at the instance of private individuals for the purpose of securing them the enjoyment of their means of happiness
 - Social and Economic rights:** intended to insure the well-being and economic security of the individual
 - Rights of the Accused** – intended for the protection of a person accused of any crime



3. **Statutory rights** – provided by laws promulgated by the law-making body and consequently, may be abolished by the same body

SUFFRAGE – right and obligation to vote of qualified citizens in the election of certain national and local officers of the government and in the decision of public questions submitted to the people.

Scope of Suffrage:

1. **Election** – a political exercise whereby the sovereign people choose a candidate to fill up an elective government position
2. **Plebiscite** – right to ratify or reject constitutional amendments or proposed laws
3. **Referendum** – right reserved to the people to adopt or reject any act or measure which has been passed by a legislative body and which in most cases would without action on the part of the electors become a law
4. **Initiative** – power of the people to propose bills and laws, and to enact or reject them at the polls, independent of the legislative assembly
5. **Recall** – system by which an elective official is removed by popular vote before the end of his term.

LEGISLATIVE DEPARTMENT

Legislative Power – authority under the constitution to make laws and alter and repeal them.

- Divided into two chambers: the Senate with 24 members and the House of Representatives with not more than 250 members, 20% of which comes from the party list representatives

Laws refers to statutes which are the written enactment of the legislature governing the relations of the people among themselves or between them and the government and its agencies

EXECUTIVE DEPARTMENT

Executive Power – vested in the President of the Philippines. It is the power to administer the laws, which means carrying them into practical operation and enforcing their due observance

Pardon – an act of grace proceeding from the power entrusted with the one-in-charge of the execution of the laws which exempts the individual on whom it is bestowed, from the punishment the law inflicts for a crime he has committed.

Kinds of Pardon:

1. **Absolute** – when it is not subjected to any condition
2. **Conditional** – when it is given subject to any condition or qualification the President may see fit

3. **Remission** – prevents the collection of fines or the confiscation of forfeited property
4. **Amnesty** – an act of the sovereign power granting oblivion or a general pardon for a past offense usually granted in favor of certain classes of persons who have committed crimes of a political character, such as treason, sedition or rebellion.

JUDICIAL DEPARTMENT

Judicial Power – power to apply the laws to contests or disputes concerning legally recognized rights or duties between the State and private persons, or between individual litigants in cases properly brought before the judicial tribunals.

- Vested in the Supreme court and in such lower courts as may be established by law
- The Supreme court is composed of a Chief Justice and 14 Associate Justices.